The Rights of the Recorded Contributor

Notice, Consent, Attribution, Correction, Appeal, and Exit

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Canonical question	What rights must protect a person when contribution evidence is recorded, evaluated, attributed, reused, transferred, or made consequential?
Canonical relationship	Procedural rights govern every stage: Provenance -> Performance -> Attribution/Allocation -> Entitlement/Payment
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Abstract

A provenance system intended to protect contributors can become a mechanism of surveillance if the person recorded by the system lacks enforceable procedural standing. The danger does not arise only from inaccurate data. It arises from asymmetry: one institution may decide what to record, which evidence to trust, how to measure performance, which attribution method to apply, how long the record persists, who may reuse it, and what consequences follow. A contributor who cannot know, inspect, challenge, correct, limit, or leave that process is not meaningfully protected by the fact that the system calls itself a ledger of contribution.

This paper develops a proposed bill of procedural rights for the recorded contributor. It treats notice, access, correction, methodological contestation, uncertainty disclosure, protection from automated judgments of personal worth, privacy and purpose limitation, rules for withdrawal and reuse, independent appeal, and anti-retaliation as institutional conditions of legitimate provenance governance. These protections do not establish ownership, compensation, or any other substantive entitlement to a documented contribution. They govern the procedure by which evidence about a person may become consequential.

The central claim is that provenance cannot be legitimate when contributors possess less practical control over the evidentiary process than the institutions recording them. A contribution ledger must therefore remain a ledger of defined contributions, not a compulsory ledger of the person. The rights proposed here are design principles for bounded pilots, contracts, platform rules, regulation, adjudication, and future legislation. Their precise legal form will vary by jurisdiction and domain; their institutional function should not.

I. The Missing Constitutional Layer

The first three papers establish a progression. Evidence should precede entitlement. Institutional memory is economically warranted only where its informational value exceeds its full cost. Legitimate markets may need contribution memory because cumulative and machine-mediated production can erase intermediate histories before society has decided what those histories mean. A further question follows immediately: what is the legal and institutional position of the person whose contribution becomes part of that memory?

The question is not secondary. Recording changes power. A system that can preserve evidence can also preserve accusation, error, evaluation, inference, and uncertainty. A system that can make contributions portable can also make adverse judgments portable. A system that can make economic history durable can also make a mistake durable. Procedural rights are therefore not an optional ethics layer placed on top of provenance. They are part of the conditions under which provenance can be legitimate at all.

A system cannot credibly protect contributors from institutional amnesia by giving institutions unilateral power over the memory that replaces it.

II. The Recorded Contributor

A recorded contributor is any identifiable or lawfully pseudonymous person whose alleged or verified contribution, participation, performance evidence, attribution, allocation, use history, dispute status, or related metadata is preserved in a provenance process and may reasonably affect a decision concerning that person or a claimed contribution.

The definition is intentionally procedural. A person may be a recorded contributor even when the system ultimately determines that the asserted contribution was not material, was misattributed, or creates no entitlement. Rights attach because the record concerns the person and may become consequential, not because the person has already proven a substantive claim.

1. Rights over procedure are not rights to an outcome

The right to see evidence is not a right to have that evidence accepted. The right to contest an attribution method is not a right to receive a larger allocation. The right to appeal is not a right to prevail. The right to withdraw from an optional provenance service is not necessarily a right to erase a lawful obligation, a court record, a counterparty's evidence, or information that must be preserved for audit or compliance. Procedural fairness protects the integrity of the decision without predetermining the decision.

2. The person is not the asset

The object of recording must remain the defined contribution, transaction, use, or evidentiary event. The person retains moral and legal standing independent of the record. Dignity, citizenship, basic rights, access to essential services, and equal legal status cannot be made conditional on an aggregate contribution score. A provenance institution that converts a bounded record into a general ranking of human worth has changed the subject from contribution governance to social classification.

III. A Proposed Bill of Procedural Rights

1. Notice

A person should receive intelligible notice when a contribution is intentionally recorded, when new evidence materially changes the record, when the record enters a new evaluation process, and before a materially different use is made of the record where advance notice is feasible. Notice should identify the institution responsible, the purpose, the categories of evidence, the anticipated decision or use, the applicable retention or review period, and the available rights of access and contestation.

2. Access

A recorded contributor should be able to inspect the evidence materially attributed to that contributor, the status of each claim, the source or attestation class where disclosure is lawful, the material inferences drawn from the evidence, and the record of consequential uses. Access should be sufficient to permit meaningful challenge, not merely a summary that hides the basis of the decision.

3. Correction

A contributor should have a practical mechanism to identify inaccurate, incomplete, duplicated, stale, or misattributed provenance and to submit corrective evidence. Correction should preserve an audit trail without forcing a known error to remain operative. Disputed information should be visibly identified as disputed while review is pending when continued use could materially affect the contributor.

4. Contestation of attribution methods

A contributor should be able to challenge the method by which recorded evidence is transformed into an attribution estimate. That includes the relevant value function, baseline, comparison group, counterfactual method, materiality threshold, treatment of interaction or substitution, temporal assumptions, and allocation rule when those elements materially affect the result. Proprietary implementation does not justify an unreviewable consequential method.

5. Uncertainty disclosure

A consequential attribution should disclose known uncertainty in a form appropriate to the decision. A point estimate should not be presented as certainty when the evidence supports only a range, ranking, probability, qualitative conclusion, or contested model. The contributor should be able to distinguish observed facts from attestations, model outputs, causal estimates, allocation choices, and legal determinations.

6. Protection from automated judgments of personal worth

No provenance system should infer a person's general moral worth, civic worth, dignity, employability, creditworthiness, eligibility for essential services, or social standing merely from measured contribution. Automated systems may assist a defined contribution decision only within a bounded purpose and with safeguards proportionate to the consequence. A contribution record is not a social score.

7. Privacy and purpose limitation

Only information reasonably necessary for the defined provenance purpose should be collected or exposed. Access should be role-appropriate. Sensitive information should receive stronger protection. Data gathered to resolve attribution should not silently be repurposed for unrelated surveillance, behavioral profiling, generalized employee ranking, marketing, credit scoring, or exclusion from essential opportunities.

8. Withdrawal, expiration, reuse, and transfer

Every provenance regime should specify what can be withdrawn, what must remain for audit or lawful reliance, when claims expire or require revalidation, how downstream reuse is governed, and what follows when an economic interest is assigned or transferred. Exit must be real where participation is voluntary, while preserving legitimate counterparty evidence and legal obligations. Withdrawal from future optional use should be distinguished from rewriting historical fact.

9. Independent appeal and dispute resolution

A materially consequential dispute should reach a reviewer who is institutionally independent of the actor that created the disputed record or selected the challenged method. The appeal process should permit evidence, reasoned decisions, correction where warranted, and escalation appropriate to the consequence. Automated enforcement should not be its own final appellate authority.

10. Protection against retaliation

A contributor should not suffer retaliation merely for seeking access, requesting correction, contesting a methodology, declining an optional use, filing a good-faith claim, assisting another contributor, or invoking an appeal process. Anti-retaliation is necessary because formal rights are hollow when exercising them risks employment, contracting, platform access, licensing opportunities, or other unrelated penalties.

IV. Consent Is Necessary but Not Sufficient

Consent is important, but it cannot carry the entire legitimacy of a provenance system. Employment, platform participation, research, public administration, regulated markets, and collaborative production often involve unequal bargaining power, legal duties, third-party interests, or records that cannot depend on unilateral permission. A checkbox cannot transform an intrusive system into a legitimate one.

The relevant design question is therefore broader: which activities require affirmative consent; which may rest on contract, law, legitimate institutional function, or another warrant; which uses require renewed

permission; and which uses should be prohibited regardless of purported consent because the consequence is incompatible with dignity or equal standing?

1. Consent should be specific enough to govern reuse

Permission to record a contribution for one adjudicative, contractual, research, or licensing purpose should not automatically authorize unrelated profiling or secondary commercialization. Where reuse materially changes the purpose or consequence, the governing warrant should be revisited.

2. Refusal must sometimes be possible

Where participation is genuinely optional, refusal should not be defeated by hidden penalties or unrelated exclusion. Where recording is required by law, contract, safety, audit, or another legitimate obligation, the institution should identify that basis directly rather than treating compelled participation as consent.

V. Contestability Across the Canonical Sequence

Procedural protection must follow the record through the complete analytical sequence. The rights cannot disappear when a record passes from evidence collection into measurement, from measurement into attribution, or from attribution into an entitlement decision.

Stage	Principal institutional question	Minimum contributor protections
Provenance	What happened, who participated, and what evidence supports the record?	Notice, access, correction, source/status labeling, privacy, purpose limitation.
Performance	What outcome occurred and under what measurement conditions?	Access to relevant metrics, domain validity, measurement limitations, correction of erroneous inputs.
Attribution / Allocation	How are recorded inputs related to outcomes, and under what allocation rule?	Method disclosure, contestation, uncertainty, alternative-model review, independent appeal.
Entitlement / Payment	What rule creates an enforceable consequence?	Notice of the rule and decision, reasoned determination, appeal, anti-retaliation, enforcement consistent with applicable law.

VI. Correction Without Historical Erasure

Provenance systems face a genuine tension. They need continuity and auditability, but contributors need inaccurate records to stop operating as if they were true. The answer is neither silent deletion nor

immutable error. The institution should distinguish the historical fact that a claim was once made from the present status of that claim.

A correction architecture can preserve the original event in a restricted audit history while ensuring that current views, decisions, and downstream interfaces carry the corrected status. Where a disputed record cannot yet be resolved, the dispute itself should be part of the provenance. Institutions should not gain evidentiary legitimacy from immutability while contributors bear the consequences of mistakes that cannot be operationally corrected.

VII. Exit, Expiration, and the Limits of Persistence

If institutional memory is permanent by default, every early error or low-context observation can become a lifelong economic shadow. If memory is too easily erased, counterparties and adjudicators lose the continuity that makes provenance useful. Legitimate design therefore requires explicit rules governing persistence.

1. Expiration and revalidation

Some facts remain historically true but become poor evidence for a current decision. Systems should distinguish historical preservation from current decisional relevance. Domain rules may require revalidation when performance measures, identity attestations, models, or contexts become stale.

2. Withdrawal and future use

Withdrawal should ordinarily terminate optional future processing or participation to the extent promised by the governing arrangement. It need not erase completed transactions, lawful audit history, evidence required to protect another party, or determinations that another institution is legally required to preserve. The boundary should be disclosed before participation rather than invented at exit.

3. Transfer of economic interests

Transfer of a license, royalty interest, security, or other economic claim should not transfer unlimited control over the contributor's identity or personal data. The economic interest and the personal record should be treated as distinct objects unless law or agreement validly provides otherwise.

VIII. Independent Review as an Institutional Requirement

A provenance institution becomes vulnerable to capture when the same actor controls evidence collection, measurement, attribution, enforcement, and appeal. Separation of functions matters because the system may be deciding claims that directly affect the institution itself.

Independent review need not mean a single universal court-like body. Different domains may use contractual arbitration, regulatory review, professional panels, ombuds structures, judicial remedies, or other mechanisms. The canonical requirement is functional independence, an opportunity to be heard, a reasoned disposition, and a correction path proportionate to the consequence.

IX. Anti-Retaliation and the Reality of Bargaining Power

Paper 2 identifies record control as a source of bargaining power. That insight has a direct procedural consequence. A worker, contractor, researcher, creator, farmer, or platform participant may formally possess a right to challenge provenance while rationally declining to use it if the institution controlling employment, access, funding, distribution, or future opportunities can punish the challenge.

A legitimate system must therefore distinguish bad-faith fraud from good-faith assertion of procedural rights. Retaliation rules should protect the act of invoking the process, not guarantee the validity of the underlying contribution claim. Otherwise the framework will reproduce the same asymmetry that portable evidence was supposed to reduce.

X. The Economic-Surveillance Objection

The strongest criticism of contribution provenance is not that it will fail to record enough. It is that it may succeed too well. Continuous measurement of work, creative activity, collaboration, use, reputation, performance, and downstream effects could become an unusually powerful infrastructure for monitoring persons. A system designed to restore bargaining power could instead centralize informational power.

This objection should be treated as a design constraint, not dismissed as resistance to measurement. Purpose limitation, data minimization, selective disclosure, bounded retention, correction, independent review, and protection against generalized human ranking are therefore constitutive safeguards. If a deployment cannot provide them at a level proportionate to its consequences, the appropriate response may be not to deploy the provenance function in that domain.

The test is not whether the system can know more. The test is whether it can preserve economically relevant memory without converting the contributor into the object of continuous institutional judgment.

XI. Rights by Design for Bounded Demonstrations

These proposed rights supply governance criteria for a future bounded demonstration of contribution provenance. A pilot should not begin by asking only whether provenance can be captured and attribution estimated. It should also test whether contributors actually receive notice, understand the purpose, obtain usable access, correct errors, challenge methodology, observe uncertainty, restrict secondary use, exit where promised, obtain independent review, and assert claims without retaliation.

The demonstration should treat rights failures as substantive results rather than implementation inconveniences. A system that improves attribution accuracy while creating unacceptable surveillance, coercion, or uncorrectable records would not establish a successful provenance institution. This paper therefore provides procedural hypotheses that can later be tested without fabricating empirical results in advance.

XII. Objections and Replies

“These rights will make provenance too expensive.”

They will add cost. That cost belongs inside the net institutional value test rather than outside it. A system that becomes uneconomic once meaningful correction, privacy, and appeal are included may not be a socially desirable provenance system.

“Full access will expose trade secrets or other people’s data.”

Access should be meaningful, not absolute. Confidential information, security-sensitive material, and third-party rights may justify redaction, controlled review, summaries, or independent inspection. The limit cannot be so broad that the contributor is unable to understand or contest the basis of a consequential decision.

“People will weaponize correction and appeal.”

Procedure can be abused. Institutions may use filing thresholds, materiality rules, consolidation, good-faith standards, and proportionate sanctions for intentional fraud. Those controls should target abuse without making ordinary contestation practically impossible.

“Withdrawal destroys the integrity of the ledger.”

Only if withdrawal is confused with retroactive deletion of every historical fact. A legitimate regime can preserve necessary audit history while ending optional future uses, restricting visibility, recording changed status, or allowing participation to cease prospectively.

“Automated systems are necessary at scale.”

Automation may be necessary for routine administration, but scale does not remove the need for contestability when decisions become consequential. The greater the consequence and uncertainty, the stronger the case for meaningful human review or another independent adjudicative mechanism.

XIII. The Unequivocal Claim

A contribution record is legitimate only if the person it describes has procedural standing against the institutions that create, interpret, reuse, and enforce that record.

This does not mean that every record requires consent, that every contributor controls every downstream fact, or that every dispute deserves judicial process. It means that the framework cannot rely on evidence, contestability, uncertainty, and dignity as abstract values while leaving the recorded person without practical means to invoke them.

The rights of the recorded contributor therefore complete a missing institutional layer in PBS/MPS. Provenance may preserve memory. Performance may describe outcomes. Attribution may estimate causal relationships. Law or agreement may create entitlement. But throughout that sequence, the contributor must remain a rights-bearing participant rather than merely the subject from whom economically useful information is extracted.

Conclusion

Institutional memory is defensible only if remembering does not become domination. The promise of provenance is that economically relevant contribution histories need not disappear whenever employment ends, organizations reorganize, platforms consolidate, or machines absorb human inputs. The danger is that the same infrastructure could create an enduring record over which the contributor has little knowledge, access, or recourse.

The procedural bill of rights proposed here establishes a boundary between those futures. Notice makes recording visible. Access makes evidence inspectable. Correction makes error reversible. Methodological contestation and uncertainty disclosure make inference accountable. Privacy and purpose limitation contain surveillance. Exit and expiration constrain persistence. Independent appeal limits institutional self-judgment. Anti-retaliation makes the rights usable in conditions of unequal bargaining power. The prohibition on automated judgments of human worth preserves the moral distinction on which the entire framework depends: contribution may be evaluated; the person may not be reduced to the evaluation.

A provenance system earns legitimacy not by remembering the most, but by remembering responsibly under rules that protect the people whose histories make the system possible.

Claim-Status Note

This paper is an author synthesis and proposed procedural-rights framework. It does not state that the listed rights currently exist as a unified legal regime, create private causes of action, override applicable contracts or statutes, require any particular ledger technology, or resolve jurisdiction-specific questions of privacy, employment, intellectual property, securities, evidence, arbitration, or administrative law. The proposal identifies institutional safeguards that should be tested, compared with existing legal protections, and adapted to the governing domain and jurisdiction before consequential deployment.

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